

## 25SMCV00133 25SMCV00133

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-28

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Case Number: 25SMCV00133 Hearing Date: July 28, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly

Hills Courthouse | Department 205

AFSANEH

AKBARI,

Plaintiff,

v.

COMMUNITY

CORPORATION OF SANTA MONICA,

Defendant.

Case No.:

25SMCV00133

Hearing Date: 07/28/2026

Trial Date:

None set

[TENTATIVE] RULING RE:

PLAINTIFF AFSANEH AKBARI'S MOTION  
FOR PROTECTIVE ORDER

Background

This

case arises from a landlord tenant dispute and alleged habitability issues. Plaintiff alleges that defendant's replacement unit for plaintiff and her father (defendant's tenant) suffered from known environmental and structural hazards, which defendant failed to remediate and which caused property damage. (First Amended Complaint ("FAC"), at p. 2.) Plaintiff Afsaneh Akbari filed this action on January 10, 2025, and on February 23, 2026, she filed the FAC (the operative complaint) against defendant Community Corporation of Santa Monica, asserting two causes of action: (1) Premises Liability; and (2) Negligence.

On

June 9, 2026, plaintiff filed the instant Motion for Protective Order. On July 15, 2026, defendant filed an opposition. On July 22, 2026, plaintiff filed an opposition to defendant's request for monetary sanctions in defendant's opposition, which the court will consider as plaintiff's reply.

Meet

and Confer and Informal Discovery Conference

A motion

for protective order must be accompanied by a meet and confer

declaration under meet and confer declaration under Section 2016.040.

(Code Civ. Proc., § 2017.020, subd. (a).) Plaintiff did not submit a meet and confer declaration. Additionally, in

Department 205, a discovery motion such as this may not be brought unless the

moving party has participated in an Information Discovery Conference ("IDC"). No IDC was held. In her motion, Plaintiff acknowledge that the

Court "ordered the parties to meet and confer regarding discovery issues and to utilize the Court's Information Discovery process before filing discovery motions."

[Motion] Standard

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.” (Code Civ. Proc., § 2017.020, subd. (a).) “The issuance and formulation of protective orders are to a large extent discretionary.” (Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 316.) “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Id. at p. 318.)

#### Analysis

##### Pursuant to Code of Civil Procedure

sections 2017.020 and 2031.060, plaintiff, a self-represented litigant, seeks an order to protect confidential personal information and materials sought by defendant in discovery, including the following categories:

1.

Residential address and residential location information

2.

Social Security number

3.

Driver's license number

4.

Tax returns and tax identification information

5.

Banking and financial account numbers

6.

Insurance policy numbers and related personal identifying information

7.

Release of Private videos or  
photographs depicting plaintiff's family members or deceased father unrelated  
to the claims at issue

8.

Personal contact information of  
nonparties

9.

Medical information not directly  
related to injuries claimed in this action

10. Private

personal business information

11. Medical

Insurance information

12. Employment

and wages

This

Department's rules require that on a discovery motion, the parties must meet  
and confer to informally resolve their dispute, and when that fails, the  
parties must attend an informal discovery conference (IDC). There is no meet  
and confer declaration and no record of an IDC on the issues raised in the  
current motion. Further, the court finds that plaintiff has not met her burden  
to sufficiently show good cause to limit discovery of such broad categories of  
information; plaintiff provides no factual or legal basis for her requested  
relief.

Pursuant

to Code of Civil Procedure sections 2023.010(h)(i), 2030.090(d), 2033.080(d),  
and 2031.060(h), defendant requests the court impose monetary sanctions against  
plaintiff in the amount of \$2,148.00. Further, section 2017.020 provides: "The  
court shall impose a monetary sanction . . . against any party, person, or  
attorney who unsuccessfully makes or opposes a motion for a protective order,  
unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2017.020, subd. (b).) The Court finds the fees sought to be reasonable.

Plaintiff

opposed defendant’s request for sanctions, declaring that she made her motion in good faith to protect sensitive personal information and that she attempted to informally resolve the discovery dispute by requesting a meet and confer prior to filing the motion. The Court finds this Opposition insufficient and orders Plaintiff to pay sanctions to Defendant in the amount of \$2,148.00 within 30 days.

Conclusion

The

Court DENIES the motion for protective order and grants . The Court further GRANTS Defendant’s request for monetary sanctions.

Dated:

July 28, 2026

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Edward B. Moreton, Jr.

Judge of the Superior Court